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Title 33 — Navigation and Navigable Waters

Chapter I — Coast Guard, Department of Homeland Security

Subchapter P — Ports and Waterways Safety

Part 168 Escort Requirements for Certain Tankers

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PART 168—ESCORT REQUIREMENTS FOR CERTAIN TANKERS

Authority: Section 4116(c), Pub. L. 101-380, 104 Stat. 520 (46 U.S.C. 3703 note); section 711 Pub. L. 111-281, 124 Stat 2905; Department of Homeland Security Delegation No. 170.1, para. 2(82).

Source: CGD 91-202, 59 FR 42968, Aug. 19, 1994, unless otherwise noted.

§ 168.01 Purpose.

- (a) This part prescribes regulations in accordance with section 4116(c) of the Oil Pollution Act of 1990 (OPA 90) (Pub. L. 101-380), as amended by section 711 of the Coast Guard Authorization Act of 2010 (Pub. L. 111-281). The regulations will reduce the risk of oil spills from laden, single hull and double hull tankers over 5,000 GT by requiring that these tankers be escorted by at least two suitable escort vessels in applicable waters, as defined in § 168.40. The escort vessels will be immediately available to influence the tankers' speed and course in the event of a steering or propulsion equipment failure, thereby reducing the possibility of groundings or collisions.
- (b) The regulations in this part establish minimum escort vessel requirements. Nothing in these regulations should be construed as relieving the master of a tanker from the duty to operate the vessel in a safe and prudent manner, taking into account the navigational constraints of the waterways to be traversed, other vessel traffic, and anticipated weather, tide, and sea conditions, which may require reduced speeds, greater assistance from escort vessels, or other operational precautions.

[CGD 91-202, 59 FR 42968, Aug. 19, 1994, as amended by USCG-2012-0975, 78 FR 50339, Aug. 19, 2013]

§ 168.05 Definitions.

As used in this part—

Disabled tanker means a tanker experiencing a loss of propulsion or steering control.

Double hull tanker means any self-propelled tank vessel that is constructed with both double bottom and double sides in accordance with the provisions of 33 CFR 157.10d.

Escort transit means that portion of the tanker's voyage through waters where escort vessels are required.

Escort vessel means any vessel that is assigned and dedicated to a tanker during the escort transit, and that is fendered and outfitted with towing gear as appropriate for its role in an emergency response to a disabled tanker.

Laden means transporting in bulk any quantity of applicable cargo, except for clingage and residue in otherwise empty cargo tanks.

Single hull tanker means any self-propelled tank vessel that is not constructed with both double bottom and double sides in accordance with the provisions of 33 CFR 157.10d.

Tanker master means the licensed onboard person in charge of the tanker.

Tanker owner or operator means the owner or shoreside organization (individual, corporation, partnership, or association), including a demise charterer, responsible for the overall management and operation of the tanker.

[CGD 91-202, 59 FR 42968, Aug. 19, 1994, as amended by USCG-2012-0975, 78 FR 50340, Aug. 19, 2013]

§ 168.10 Responsibilities.

- (a) The tanker owner or operator shall:
 - (1) select escort vessels that can meet the performance requirements of this part; and
 - (2) inform the tanker master of the performance capabilities of the selected escort vessels. This information must be provided to the master before beginning the escort transit.
- (b) The tanker master shall operate the tanker within the performance capabilities of the escort vessels, taking into account speed, sea and weather conditions, navigational considerations, and other factors that may change or arise during the escort transit.
- (c) In an emergency, the tanker master may deviate from the requirements of this part to the extent necessary to avoid endangering persons, property, or the environment, but shall immediately report the deviation to the cognizant Coast Guard Captain of the Port (COTP).

§ 168.20 Applicable vessels.

The requirements of this part apply to the following laden tankers of 5,000 gross tons or more:

- (a) All single hull tankers on the waters listed in § 168.40(a) and (b); and
- (b) All double hull tankers on the waters listed in § 168.40(a).

[USCG-2012-0975, 78 FR 50340, Aug. 19, 2013]

§ 168.30 Applicable cargoes.

The requirements of this part apply to any petroleum oil listed in 46 CFR Table 30.25-1 as a pollution category I cargo.

§ 168.40 Applicable waters and number of escort vessels.

The requirements of this part apply to the following waters:

- (a) **Prince William Sound:** Each tanker to which this part applies must be escorted by at least two escort vessels in those navigable waters of the United States within Prince William Sound, Alaska, and the adjoining tributaries, bays, harbors, and ports, including the navigable waters of the United States within a line drawn from Cape Hinchinbrook Light, to Seal Rocks Light, to a point on Montague Island at 60°14.6' North, 146°59' West, and the waters of Montague Strait east of a line between Cape Puget and Cape Cleare.
- (b) **Puget Sound and certain associated waters:** Each tanker to which this part applies must be escorted by at least two escort vessels in those navigable waters of the United States and Washington State east of a line connecting New Dungeness Light with Discovery Island Light and all points in the Puget Sound area north and south of these lights. This area includes all the navigable waters of the United States within Haro Strait, Rosario Strait, the Strait of Georgia, Puget Sound, and Hood Canal, as well as those portions of the Strait of Juan de Fuca east of the New Dungeness-Discovery Island line.

§ 168.50 Performance and operational requirements.

- (a) Except as provided in paragraph (c) of § 168.10, at all times during the escort transit each tanker to which this part applies:
 - (1) Must be accompanied by escort vessels that meet the performance requirements of paragraph (b) of this section (but not less than the number of escorts required by § 168.40).
 - (2) Must have the escort vessels positioned relative to the tanker such that timely response to a propulsion or steering failure can be effected.
 - (3) Must not exceed a speed beyond which the escort vessels can reasonably be expected to safely bring the tanker under control within the navigational limits of the waterway, taking into consideration ambient sea and weather conditions, surrounding vessel traffic, hazards, and other factors that may reduce the available sea room.
- (b) The escort vessels, acting singly or jointly in any combination as needed, and considering their applied force vectors on the tanker's hull, must be capable of—
 - (1) Towing the tanker at 4 knots in calm conditions, and holding it in steady position against a 45-knot headwind;
 - (2) [Reserved]
 - (3) Holding the tanker on a steady course against a 35-degree locked rudder at a speed of 6 knots; and
 - (4) Turning the tanker 90 degrees, assuming a free-swinging rudder and a speed of 6 knots, within the same distance (advance and transfer) that it could turn itself with a hard-over rudder.

[CGD 91-202, 59 FR 42968, Aug. 19, 1994, as amended at 70 FR 55730, Sept. 23, 2005]

§ 168.60 Pre-escort conference.

- (a) Before commencing an escort transit, the tanker master shall confer, by radio or in person, with the tanker pilot and the masters of the escort vessels regarding the escort operation.
- (b) The purpose of the pre-escort conference is for all parties to plan and discuss particulars of the escort transit.
- (c) At a minimum, the following topics must be addressed during the pre-escort conference:
 - (1) The destination, route, planned speed, other vessel traffic, anticipated weather, tide, and sea conditions, and other navigational considerations;
 - (2) The type and operational status of communication, towing, steering, and propulsion equipment on the tanker and escort vessels;
 - (3) The relative positioning and reaction time for the escort vessels to move into assist positions, including, if appropriate, pre-tethering the escort vessels at crucial points along the route;
 - (4) The preparations required on the tanker and escort vessels, and the methods employed in making an emergency towline connection, including stationing of deck crews, preparation of messenger lines, bridles, and other towing gear, and energizing appropriate deck equipment;
 - (5) The manner in which an emergency towline connection would be made (which escort vessel will respond, how messengers and towlines will be passed, etc.);
 - (6) Other relevant information provided by the tanker master, pilot or escort vessel masters.